



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

June 30, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202100012 regarding Police Officer Bismal Tineo, Tax No. 962135 (DADS No. 2022-25959), and Police Officer Harrynson Lopez, Tax No. 955086 (DADS No. 2022-25960)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the officers' statements did not constitute offensive language, as was alleged, and therefore, does not warrant a penalty.

In this case, both officers asked an individual "are you crazy?" as an immediate response to information that the individual who had just been taken into custody had attempted to strike an officer. These statements were clearly made to express surprise at the individual's actions, not as a comment about the individual's mental health. In fact, only after both officers' statements were made, was the sergeant's decision to take the individual to the hospital as an emotionally disturbed person communicated to these officers.

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Website: <http://nyc.gov/nypd>

Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Tineo and Police Officer Lopez will receive no disciplinary action.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Lourdes Soto', with a stylized, flowing script.

Lourdes Soto

Inspector

Commanding Officer

Police Commissioner's Office